

25AVCV00137 25AVCV00137

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C07%2F07%2F2026

Source SHA-256: 6be3b54af9a713183ed684d119bf85e94c0dc95a6bac44d87b8a955c1802b9ab

Case Number: 25AVCV00137 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JOSEPH MILLER,

Plaintiff,

v.

VOLKSWAGEN GROUP OF AMERICA, INC.; AUDI VALENCIA; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00137

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a case regarding violation of statutory obligations under the Song-Beverly Consumer Warranty Act.

On January 31, 2025, Plaintiff filed his complaint.

On April 18, 2025, Volkswagen filed its demurrer to the complaint.

On May 20, 2025, Plaintiff filed his first amended complaint (FAC) against Defendants Volkswagen Group of America, Inc. (Volkswagen) and Audi Valencia (Audi), asserting causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, (5) negligent repair, and (6) fraudulent inducement – concealment.

Specifically, Plaintiff alleges that on or about March 31, 2022, he entered into a warranty contract with Volkswagen regarding a 2022 Audi E-tron, which was manufactured and distributed by Volkswagen. (FAC, ¶ 10.) Plaintiff avers that defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including electric battery defects, electrical defects, and other nonconformities and defects, which have substantially impaired the use, value, or safety of the vehicle and rendered the vehicle's value worthless or de minimis. (FAC, ¶¶ 19-21.) Plaintiff claims Volkswagen failed to promptly replace the vehicle or promptly make restitution in accordance with the Song-Beverly Act. (FAC, ¶ 23.)

On April 3, 2026, Volkswagen filed its motion to compel the deposition of Plaintiff and request for monetary sanctions.

On June 22, 2026, Plaintiff filed a notice of settlement of the entire case. That same day, Plaintiff filed his notice of withdrawal of the notice of settlement of the entire case.

No opposition to the motion to compel deposition has been filed.

II. Legal Standard

Standard for Motion to Compel Deposition – Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code of Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code of Civ. Proc., § 2025.280, subd. (a).)

“If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent's attendance and testimony, and the production . . . of any document . . . described in the deposition notice.” (Code of Civ. Proc., § 2025.450, subd. (a).) The motion must set forth facts showing both good cause justifying the demand for any documents and a meet and confer declaration. (Code of Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).)

Meet and Confer Requirement – The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450 subd. (b)(2).)

III. Discussion

Application – Volkswagen moves to compel Plaintiff's deposition following his purported refusal to appear for his deposition and the refusal of his counsel to reasonably meet and confer in good faith to schedule the deposition on mutually agreeable dates. (Motion, p. 8-11.) Volkswagen alleges that on March 31, 2025, Volkswagen served Plaintiff with a notice of representation to Plaintiff's counsel, which informed Plaintiff of its intent to depose Plaintiff within 90 days and requested Plaintiff's availability to be deposed. (Kim Decl., ¶ 3, Ex. A.) Plaintiff did not respond to this request. (Ibid.)

On July 18, 2025, Volkswagen served its notice of deposition, scheduled for September 17, 2025. (Kim Decl., ¶ 4, Ex. B.) Plaintiff served his objection to the notice of deposition on September 15, 2025, stating he was unavailable, that he would meet and confer with Volkswagen to reschedule the deposition on a mutually agreeable date and time, and provided February 2, 2026, as a date of availability. (Ibid.)

On October 10, 2025, Volkswagen served its amended notice of deposition scheduled for February 2, 2026. (Kim Decl., ¶ 5, Ex. C.) On January 30, 2026, Plaintiff served an objection to the amended notice of deposition, again stating his unavailability for the scheduled date, stating the parties were meeting and conferring to reschedule the deposition. (Ibid.) Since this objection, Volkswagen has continuously followed up with Plaintiff's counsel to either settle the case or move forward with discovery, but Plaintiff has failed to respond. (Kim Decl., ¶ 6, Ex. D.)

On March 26, 2026, Volkswagen served a meet and confer letter to Plaintiff's counsel regarding Plaintiff's deposition, accompanied by a further notice of deposition scheduling Plaintiff's deposition for April 1, 2026. (Kim Decl., ¶ 7, Ex. D, E.) On April 1, 2026, Plaintiff objected to the amended notice, and since has continued to be unresponsive to Defendant's efforts to resolve the matter. (Kim Decl., ¶ 8, Ex. F.) Plaintiff has failed to respond to any of Defendant's efforts to set the deposition, has not provided any alternative dates, and has not responded to offers of settlement. (Kim Decl., ¶ 9.)

a. Meet and Confer Requirement

Volkswagen's counsel, Alexander Y. Kim, submitted his declaration (Kim Declaration), in which he states Volkswagen continuously followed up with Plaintiff after his objection to the latest notice of deposition. Attached as Exhibit D to the Kim Declaration are copies of emails sent by Volkswagen, including an email sent on April 3, 2026, after Plaintiff's objection.

The Court finds that Volkswagen has satisfied the meet and confer requirement.

b. Good Cause

Volkswagen has shown good cause for compelling Plaintiff's deposition. Volkswagen is entitled as a legal matter of right to take Plaintiff's deposition in this matter. (Cal. Code Civ. Proc., § 2025.010.) Volkswagen properly served three separate deposition notices on Plaintiff, which alone is effective to require a party-deponent to attend and to testify. (Cal. Code Civ. Proc., § 2025.240, subd. (a).) Further, Volkswagen has made clear that it seeks Plaintiff's deposition to gather pertinent information, assess his claims and credibility, and evaluate the extent of his alleged damages which he put at issue in this case. (Motion, p. 7:19-22.) In short, Volkswagen states that its ability to depose Plaintiff is critical to its evaluation of the presented claims and preparing for trial. (Motion, p. 8:8-9.) The Court also notes the trial date of August 28, 2026, and the impending discovery cut-off date of July 29, 2026.

While a party may object to a unilaterally scheduled deposition due to unavailability, he may not evade the discovery process entirely by refusing to make himself available or failing to supply alternative dates of availability. Here, Plaintiff objected to three separate deposition notices, including one set for February 2, 2026, a date proposed by Plaintiff. Plaintiff served this

objection just three days before the deposition, and months after the deposition was noticed. The Court finds that this objection was not in good faith. Plaintiff has neither met nor conferred with Volkswagen to resolve the issue nor proposed alternate dates of availability. Furthermore, Plaintiff has not objected to this motion to compel to address any reason why the motion should not be granted.

Accordingly, Volkswagen's motion to compel Plaintiff's deposition is GRANTED.

c. Request for Monetary Sanctions

Volkswagen requests monetary sanctions in the amount of \$2,567.50. The Court has discretion to impose a monetary sanction on a party who has engaged in the misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).)

Here, Volkswagen's counsel Kim states that he charges \$395 per hour in his representation of Volkswagen. (Kim Decl., ¶ 11.) Kim asserts that he spent at least one hour preparing the deposition notices, meet and confer correspondence, and email correspondences in an effort to take Plaintiff's deposition, at least two and a half hours preparing the present motion and accompanying declaration, and anticipates an additional three hours of work on this matter to review and analyze the anticipated opposition, prepare a reply, and prepare for and attend hearing on this matter. (Id at 12-14.)

The Court notes that no opposition was filed, and as such, no review or reply preparation was required. Otherwise, the Court finds the rate and work done on this matter reasonable. Furthermore, Volkswagen's request for monetary sanctions remains unopposed.

Accordingly, Volkswagen's request for monetary sanctions for misuse of the discovery process is GRANTED in the amount of \$2,000, the amount requested by Volkswagen less \$567.50 for approximately one and a half hours anticipated for review of Plaintiff's opposition and drafting of a reply.

IV. Conclusion

Defendant Volkswagen Group of America, Inc.'s Motion to Compel the Deposition of Plaintiff Joseph Miller is GRANTED. Plaintiff is to appear for deposition within 15 days of this Order.

Defendant Volkswagen Group of America, Inc.'s Request for Monetary Sanctions is GRANTED. Plaintiff is ordered to pay to Volkswagen Group of America, Inc. sanctions in the amount of \$2,000 within 30 days of this Order.